§ 155.40 Grand larceny in the second degree.

A person is guilty of grand larceny in the second degree when such person steals property and when:

1. The value of the property exceeds fifty thousand dollars; or

2. The property, regardless of its nature and value, is obtained by extortion committed by instilling in the victim a fear that the actor or another person will (a) cause physical injury to some person in the future, or (b) cause damage to property, or (c) use or abuse the actor's position as a public servant by engaging in conduct within or related to the actor's official duties, or by failing or refusing to perform an official duty, in such manner as to affect some person adversely; or

** 3. The property consists of retail goods or merchandise stolen pursuant to a common scheme or plan or a single, ongoing intent to deprive another or others of the property or to appropriate the property to the actor or another person and the value of the property exceeds fifty thousand dollars, which value may be determined by the aggregate value of all such property regardless of whether the goods or merchandise were stolen from the same owner. Nothing in this subdivision shall be read to limit the ability to aggregate the value of any property or the ability to charge the larceny of retail goods or merchandise under another applicable provision of law.

** NB There are 2 sb 3's

** 3. Such person commits deed theft, regardless of the value, of: (a) one residential real property; or (b) one commercial mixed-use property with at least one residential unit; or (c) two or more commercial properties.

** NB There are 2 sb 3's

Grand larceny in the second degree is a class C felony.